SUPREME COURT OF INDIA

APPELLATE JURISDICTION · CONSTITUTION BENCH (5 JUDGES)

Writ Petition No. 356 of 1977 **CNR: SCIN010003561977**

Date of Pronouncement: 31 July, 1980 *Citation: (1980) 3 SCC 625*

CORAM: Hon'ble Y.V. Chandrachud, C.J., P.N. Bhagwati, A.C. Gupta, N.L. Untwalia, P

Petitioner / Appellant: Minerva Mills Ltd. & Others

- VERSUS -

Respondent / State: Union of India & Others

SUBJECT: CONSTITUTIONAL LAW & FUNDAMENTAL RIGHTS **AUTHORITY: Good Law (Constitution Bench Landmark)**

JUDICIAL RATIO DECIDENDI & OPERATIVE PRINCIPLES:

A limited amending power is one of the basic features of the Indian Constitution and therefore the limitations on that power cannot be destroyed. Indian Constitution is founded on the bedrock of the balance between Parts III and IV.

STATUTORY PROVISIONS INTERPRETED: Article 368(4), Article 368(5), Article 31C, Article 14, Article 19

FINAL DISPOSITION: SECTIONS 4 & 55 OF 42ND AMENDMENT STRUCK DOWN

EXECUTIVE SUMMARY:

Five-judge bench struck down clauses (4) and (5) of Article 368 inserted by 42nd Amendment, holding that conferring unlimited amending power on Parliament and ousting judicial review violates the Basic Structure.

LEXGUARD CRYPTOGRAPHIC VERIFICATION SEAL · SECTION 65B ADMISSIBLE

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